

HomeVault Property Management

Corporate Office • 1515 E. 20th St. Suite D • Farmington, NM 87401

For Farmington – (505) 427-3434 Flagstaff – (928) 923-6868 Charlotte – (704) 585-7145 Denver – (303) 292-5638 Bonita Springs – (844) 736-8239

Albuquerque – (505) 265-1241

1. Residential Lease Agreement

1.1 AGREEMENT FORM

THIS FORM HAS NOT BEEN APPROVED BY THE COLORADO REAL ESTATE COMMISSION. IT WAS PREPARED BY TSCHETTER SULZER AS LEGAL COUNSEL FOR HOMEVAULT CO, LLC.

THIS FORM HAS IMPORTANT LEGAL CONSEQUENCES AND THE PARTIES SHOULD CONSULT LEGAL AND TAX OR OTHER COUNSEL BEFORE SIGNING.

By initialing below, you acknowledge and agree to the terms in Section 1.

The tenant's initials, "GJS", are written inside a green rectangular box with "RV" in the top right corner. Below the box is the text "Tenant Initials".

The landlord's initials, "TC", are written inside a green rectangular box with "RV" in the top right corner. Below the box is the text "Landlord Initials".

2. RESIDENTIAL LEASE AGREEMENT

2.1 AGREEMENT FORM

THIS FORM HAS NOT BEEN APPROVED BY THE COLORADO REAL ESTATE COMMISSION. IT WAS PREPARED BY TSCHETTER SULZER AS LEGAL COUNSEL FOR HOMEVAULT CO, LLC.

THIS FORM HAS IMPORTANT LEGAL CONSEQUENCES AND THE PARTIES SHOULD CONSULT LEGAL AND TAX OR OTHER COUNSEL BEFORE SIGNING.

2.2 DUTIES OF BROKER

MATERIAL INTEREST/RELATIONSHIP.

Owner's Broker does not have a material interest or relationship of a business, personal or family nature in the transaction, including compensation from more than one party.

ADVERSE MATERIAL FACTS.

Adverse material facts actually known by the Broker about the property or the transaction, or about the financial ability of the party to the transaction to complete the transaction.

NA NONE

Explain: _____

RV
GJS

Tenant Initials

RV
TC

Landlord Initials

2.3 AGREEMENT

This lease is hereby entered into on 4/1/22 by and between Landlord and Tenant:
Landlord: Sean Burden (herein Landlord) and
Tenant: Gustav J. Solis (herein Tenant).

HomeVault CO, LLC. doing business as HomeVault Property Management is Landlord's agent and is authorized to enforce the terms of this lease on behalf of Landlord.

2.4 PREMISES

Landlord, in consideration of the rent reserved herein to be paid by Tenant and of the other covenants, agreements and conditions hereinafter contained to be kept, performed and observed by Tenant, does hereby let and lease unto Tenant the Premises known and

numbered 2261 Blake St, Apt 3B, Denver, CO 80205

along with parking space(s) 32

and Storage space(s) 32

from twelve o'clock noon of 5/30/2022 (Commencement Date) until twelve o'clock noon on 5/31/2023.

2.5 RENT

Tenant shall rent the Premises from Landlord for the full term stated in Section 2 of this agreement for the amount of \$ 20,700.00 payable in monthly installments of \$ 1,725.00. If the Commencement Date of this Agreement is any day other than the first day of the month the rent for the first month of this lease shall be prorated based on the actual number of days of first month beginning with the Commencement Date and ending with the last day of the month. The rent for the first month of this agreement is \$ 1,725.00. In the event that the Commencement Date is the 20th of the month or later, the prorated amount for the first month's rent shall be accompanied by the next full month's rent.

A. Rent and all other payments/fees due under this Agreement shall be delivered to Landlord **only via tenant portal** (or other place

designated by Manager) prior to 8:00AM on the first day each month. Tenant will be notified in writing by HomeVault CO, LLC. if future payments are to be made payable to Landlord and Landlord's place of payment will be provided upon notification.

B. If Tenant for any reason returns a check / NSF, there will be a \$50.00 returned check fee / NSF fee assessed to the Tenant's account and additional charges may also be assessed. This amount shall be paid immediately upon demand.

C. Tenant understands that he/she will be charged from the above noted move-in date, even if move-in does not occur, unless prior written agreement is made with the manager.

D. There will be a \$50.00 fee for any key, access card or parking hang tag or garage door opener that is not returned upon vacating the unit or in the event a replacement key access card or parking hang tag or garage door opener is requested by the Tenant. If all keys are not returned the Tenant will be charged \$250.00 to re-key the unit. There will be a charge of \$400.00 for each cable box that is removed from the unit.

E. Any violation of any term of this lease Agreement, or of any term of the HOA Rules and Regulations referenced herein, by Tenant shall be considered a breach of this lease and cause for eviction. A \$50.00 service charge will be assessed to Tenant for posting notices on the property due to any violation of this lease agreement or the HOA Rules and Regulations. This also applies to any notices or invoices received from any governmental or regulatory agency due to a violation at this leased Premises.

2.6 NO SMOKING

Unless otherwise agreed to in writing by Landlord's Agent, there shall be no smoking in or around the property or any of the common community elements, such as balconies or courtyards.

2.7 SECURITY AND OTHER DEPOSITS

A. Tenant shall not apply or use any portion of the Lease Deposit as an offset to the payment of rent or other sums due under this Lease at anytime for any reason whatsoever. Manager shall have the right to apply such portion(s) of the Security Deposit reasonably necessary to remedy any default(s) by Tenant in the payment of rent, or to repair any damage to the Premises or to Manager's or Landlord's property caused by Tenant. **AT NO TIME MAY TENANT USE THE SECURITY DEPOSIT IN LIEU OF RENT.**

B. Security deposit of \$ \$0.00 shall be held by HomeVault CO, LLC. Landlord shall bear full legal and financial responsibility for return of the security deposit and other deposits. In accordance with state law: Landlord's address is **on file with Landlord's Manager** for questions regarding return of security deposit. Security and other deposits may be transferred between Landlord and Landlord's Manager with advanced written notice to tenant by Landlord's Manager.

C. Security deposit less retention shall be returned to Tenant within **sixty (60)** days after the expiration date of this lease to the last known address of the Tenant. The last known address will assumed to be Tenant's address under the lease unless Tenant notifies Landlord of Tenant's forwarding address in writing prior to Landlord's return of the security deposit.

D. In the event Tenant terminates this lease in violation of the terms herein contained, or in the event Landlord elects to terminate this agreement because of Tenant's violation of the terms hereof, all or any part of said security deposit may be retained by owner as reimbursement either for damage to the property, or for loss of rent or for any other loss or damage, and shall in no event relieve Tenant of liability for the difference in the amount of said deposit retained and the actual damage or loss of rent or other loss or damage sustained by owner.

2.8 RENT PAYMENTS

Tenant shall pay all sums under this Lease when due with no grace period and Manager, although not required, may demand any sum due under this Lease on the date it is due. Upon written notice and regardless of Tenant's default, Manager may require Tenant to pay all sums in certified funds, or in one monthly check or payment rather than in multiple checks or payments. Tenant shall not pay Manager in cash. Manager shall apply on Tenant's account all monies received from Tenant in Manager's sole and absolute discretion, regardless of any notations on payments made by Tenant or when Tenant's obligation to pay such monies arose. Tenant's promise and covenant to pay rent is independent, absolute, without right to setoff, offset, or deduct by Tenant, for any reason whatsoever including but not limited to any alleged breach of Manager or Landlord claimed by Tenant. Regardless of whether specifically stated in any applicable provision of this Agreement, any and all rent, amounts, charges, sums, damages, or money owed by Tenant under this Lease shall be considered rent, and Manager shall have all remedies for non-payment of any amount including eviction. If Tenant tenders any payment to Manager that is less than the full amount due, to the contrary or otherwise on any instrument tendered or offered in payment, any such payment shall only be deemed a partial payment "on account" of the full amount due.

2.9 CONCESSIONS

Any monthly concessions granted to Tenant shall immediately become due and payable by Tenant if Tenant fails to honor the complete term of this lease Agreement.

2.10 LATE FEES

Any installment received by Manager after the first of the month shall be accompanied by a ten percent (10%) late fee of the monthly installment amount. Notwithstanding anything to the contrary herein, in the event any late charge payable hereunder is determined to be usurious or illegal for any reason, such late charges hereunder shall instead be equal to the highest amount permitted by law.

2.11 MOVE IN

Some properties, Homeowners Associations, or buildings may require a move in / move out fee, which shall be the Tenant's expense. Tenant acknowledges that Tenant has either viewed the Premises in person or has been presented with the opportunity to view the Premises in person and that the Premises are in an acceptable "as is" condition, and that the Premises are in good, clean, and acceptable repair except as specifically be agreed to by the parties in writing on the Tenant's Move-In/Move-Out Checklist to be completed by Tenant within 72 hours of the Commencement Date of this Residential Lease Agreement. Immediately upon occupying, Tenant will inspect the Premises and report any defects or problems on the Move-In/Move-Out Checklist. The Move-in/Move-Out Checklist must be received and approved by Manager within 72 hours of occupancy upon which it will be attached hereto and made a part of this Lease. Tenant's failure to report any defects or problems with the Premises on the Move-In/Move-Out Checklist within 72 hours of move-in, is and shall be a binding admission that the items described in the Move-In/Move-Out Checklist are acceptable and in Good condition. Tenants accept the Property in as-is condition, without representation or warranty of any kind, whether express or implied, including any warranty of habitability or covenant of quiet enjoyment. Manager specifically disclaims any warranty or covenant of quiet enjoyment.

2.12 SMOKE DETECTORS AND CARBON MONOXIDE DETECTORS

Tenant acknowledges that as of this date, the Premises is equipped with one or more smoke detectors and carbon monoxide detectors; that tenant will inspect the detector(s) prior to occupancy; and that unless Tenant notifies Manager otherwise, prior to occupancy, Tenant finds it/ them to be in good working order. Tenant agrees that is Tenant's duty to regularly test the detector(s). Tenant agrees to replace the detector(s) battery, if any, at anytime the existing battery becomes unserviceable. Landlord shall not be liable for Tenant's failure to notify Landlord of any problem, defect, malfunction, or failure of detector(s); theft of detector(s) or its serviceable battery; and/or false alarms produced by detector(s).

2.13 MOVE OUT

If Tenant fails to clean the premises in accordance with Manager's most current written Move Out Policies and Instructions which are incorporated by reference, Manager may withhold or deduct reasonable charges to complete such cleaning from the Security Deposit. Tenant agrees, at least sixty (60) days prior to the expiration of the term, to give written notice to Landlord of Tenant's intention to vacate the Property at the end of the term of the Lease Contract. If such notice is not timely given, Tenant shall be in breach of this Agreement and Landlord shall have all remedies provided for in this Agreement and at law.

2.14 DEPOSIT RETURN; SURRENDER; ABANDONMENT

Surrender or abandonment ends Tenant's right of possession for all purposes, including re-letting the Property, damages, clean-up charges, removing property left in the Property, and return of the security deposit. Tenant shall be liable to Landlord for a re-letting charge of an amount equal to 1 months rent (\$ 1,725.00) if :

- A. Tenant fails to give written move-out notice
- B. Tenant moves out without paying rent in full for the entire lease term or renewal period
- C. Tenant moves out at our demand because of your default; or
- D. Tenant is judicially evicted.

2.15 HOLDING OVER

If with the consent of Manager, Tenant continues in possession of the Premises after expiration of the Lease Term, any extension, or renewal, this Lease shall become a month-to-month lease, subject to all the terms and conditions of this Lease. If Tenant becomes a month to month tenant, Tenant shall pay Landlord for any month to month period rent equivalent to the last month of the proceeding term plus

\$150.00 per month as a month to month fee.

2.16 ACCELERATION

All monthly rent for the rest of the Lease Contract term or renewal period shall be accelerated automatically without notice or demand (before or after acceleration) and will be immediately due and delinquent if, without Landlord's written consent:

A. Tenant moves out, removes property in preparing to move out, or gives oral or written notice (by Tenant or any occupant) of intent to move out before the Lease Contract term or renewal period ends; and

B. Tenant has not paid all rent for the entire Lease Contract term and renewal period. Such conduct is considered a default for which Landlord need not give Tenant notice. Remaining rent will also be accelerated if a judgment for possession enters against Tenant or Tenant moves out when Landlord demands possession because of a default. Landlord's right to accelerate is in lieu of having rent for the entire term payable when the Lease Contract begins.

2.17 DEFAULT

If Tenant defaults Landlord shall have all remedies provided for in this Agreement and at law. In the event of any default under this Agreement by Landlord, Tenant's remedies shall be limited to either an action for specific performance or declaratory judgment. Tenant waives the right to an award for damages in consideration of Landlord's Agreement to rent the Premises to Tenant. Each right and remedy provided for and to Landlord in this Agreement shall be cumulative and shall be in addition to each and every other right or remedy provided for in this Agreement and at law whichever is greater now or hereafter existing at law or in equity.

Tenant shall be in default if: (1) Tenant fails to pay rent or other amounts provided by this Lease Contract when due; (2) Tenant or any guest or occupant violates this Lease Contract, property rules, HOA rules, or fire safety or health law (3) Tenant abandons the Property; (4) Tenant gives or gave incorrect or false information in a rental application; (5) Tenant or any occupant is convicted of a criminal offense; or (6) any illegal drugs or paraphernalia are found in the Property. If in default, Landlord may exercise one or more remedies, without limiting any other right or remedy.

2.18 RELEASE OF LIABILITY

No security system is failsafe. Even the best system can't prevent crime. Always act as if security systems don't exist since they are subject to malfunction, tampering, and human error. We disclaim any express or implied warranties of security. The best safety measures are the ones you perform as a matter of common sense and habit.

Tenant hereby releases, indemnifies, and holds harmless Landlord, Manager and their respective Managers, contractors and employees from and against any and all claims, causes of action, demands, costs or expenses, including court cost and attorney fees, arising out of or in any way related to any and all Tenant Services provided to Tenant by Landlord, Manager and their respective Managers, contractors and employees.

A. Casualty Loss. Landlord and Landlord's Manager do not warrant, represent or guarantee the safety of Tenant's personal property. Tenant hereby releases Landlord from any and all claims for damage or loss to Tenant's personal property and shall indemnify and hold Landlord harmless, including Landlord's attorney fees and costs, from any claims associated with Tenant's personal property regardless of by whom such claims are brought, including Tenant's insurer. Landlord advises Tenant to obtain insurance for losses due to theft, fire, smoke, water damage, and the like.

B. TENANT IS ADVISED TO PURCHASE RENTERS INSURANCE. LANDLORD AND LANDLORD'S AGENT SHALL HAVE NO RESPONSIBILITY FOR THEFT, LOSS OR DAMAGE TO TENANT'S PERSONAL PROPERTY. LANDLORD'S INSURANCE POLICIES PROVIDE NO COVERAGE FOR TENANT'S PROPERTY, INCLUDING TENANT'S AUTOMOBILE.

2.19 SUBLETTING OR ASSIGNMENT OF LEASE

Tenant may not assign or sublet the leased premises for any part of the term of this lease.

2.20 USE AND OCCUPANCY

Tenant covenants that the Premises is to be used and occupied by Tenant as Tenant's principle residence, solely as a private Tenential household, not for any unlawful purpose, and not for any other purpose whatsoever, including any business purpose that is not specifically allowed by this Lease. Conducting any kind of business except as set forth specifically herein in the premises is prohibited. Tenant shall show due consideration for others by not interfering with, disturbing, or threatening the rights, comfort, health, safety, convenience, quiet enjoyment, management (including unreasonable or hostile communications with Manager), and use of the community by other Tenants and occupants and any of their guests, Managers, invitees, or the general public (collectively "others"). Manager shall be the sole judge of acceptable conduct. Tenant agrees not to permit, commit, or suffer any conduct disorderly or otherwise, noise, vibration, odor, or other nuisance whatsoever about the Premises. Occupation of the Premises is subject to applicable occupancy standards determined by law and by Manager. Only authorized occupants shall occupy the premises. Manager must approve any change of authorized occupants in writing prior to occupancy. If any unauthorized person occupies the Premises for more than seven (7) days without Manager's consent, such person shall be deemed an unauthorized occupant and subject to Manager's approval. Any approval of any Occupant is in Manager's sole and absolute discretion. Manager may specifically condition any approval upon among other things, such unauthorized occupant completing the normal residency application process including a rental application and paying Manager's application fee or other customary fees and charges required by new Tenants. If Manager claims that any person residing in Tenant's Premises is an unauthorized occupant, Tenant shall bear the burden of proving in any court action or eviction proceeding that the person challenged by Manager as an unauthorized occupant does not reside at the Premises.

Tenant shall provide, and allow Landlord or Landlord's Agent to provide an executed copy of this lease agreement, addenda, related documentation, and all lease renewals to the HOA and the HOA management company for this property.

Tenant shall abide by all Building and Home Owners Association rules and regulations. These documents are made a part of this lease by reference.

Tenant shall abide by all federal, state and local laws and regulations.

2.21 PETS

Tenant shall not keep ANY animals on the said premises for ANY length of time without first obtaining the written consent of the Landlord. If an unauthorized pet has been in the property at any time during your term of occupancy, Tenant shall pay a non-refundable fee of \$1,000.00 to Landlord. Payment of this fee does not entitle Tenant to keep unauthorized pet(s) on the premises and Tenant shall have 72 hours from initial posting of notice to remove unauthorized pet(s).

2.22 UTILITIES

In addition to Rent, Tenant agrees to pay any and all other utilities including related deposits and transfer charges that Landlord has not specifically agreed to pay. Manager shall transfer into Tenant's name or account effective on the Commencement Date of this Agreement all utilities serving the premises that are to be paid for by Tenant. For any utility bill or account in Tenant's name, Tenant shall not change out of Tenant's name or allow any such utility to be disconnected for any reason or by any means including but not limited to non-payment of utility bills until the Tenant moves out of the Premises. Tenant shall be liable for all utilities until the date Tenant vacates or until the date Tenant could have moved out if Tenant had given proper notice whichever date is later. If Tenant agrees to pay any utility, Landlord reserves the right to pay any such utility and bill Tenant.

The payment of utilities for the Property will be paid for by the Tenant, with the exception of the following utilities (if any), which are paid for by Landlord:

Water, Sewer, Trash, Heat and Basic Cable

Any and all charges for additional utilities or upgrades to utilities requested by Tenant and approved in writing by Landlord or Landlord's Manager shall be paid by the Tenant.

If Tenant fails to place utilities in Tenant's name within 72 hours of lease commencement and/or terminates utilities prior to the lease expiration, a \$10 per day fee will be assessed to the Tenant for every day that the utilities are not in Tenant's name, including the initial 72 hours after lease commencement.

The Tenant is not permitted to install satellite dishes on the roof or the side of the home. Satellites may only be installed on a pole mount, out of sight, and in the backyard. All such installed satellites must be removed upon termination of the lease. Landlord suggests Tenants contact Citizens Home Solutions free of charge at (877) 528-3824 to ensure the installation is done correctly, avoiding fines and fees. (Tenant understands that Landlord has contracted with Citizens Home Solutions to handle Tenant utility relations free of charge to Tenant, and that Landlord may receive incentives, from time to time, from Citizens Home Solutions.)

2.23 ACCESS TO PROPERTY

If Tenant or any guest or occupant is present, then Tenant shall allow repairers, servicers, or Landlord's or Manager's representatives to peacefully enter the property at reasonable times for the purposes listed below. If nobody is present in the Property, then repairers, servicers, or Manager's representatives may enter peacefully and at reasonable times by duplicate or master key if entry is for responding to Tenant's request; repairs; estimating repair or refurbishing costs; pest control; preventative maintenance; filter changes; testing or replacing smoke-detector batteries; retrieving tools or appliances; preventing waste of utilities; delivering, installing, reconnecting, or replacing appliances, furniture, equipment, or security devices; removing or re-keying unauthorized security devices; stopping excessive noise or other disturbances; removing health or safety hazards (including hazardous materials) and items prohibited under law, Homeowners Association, building or Manager rules; retrieving property owned or leased by former tenants; inspections; entry by a law-enforcement officer with or without a search warrant or in hot pursuit; showing the property to government inspectors, fire marshals, lenders, appraisers, prospective buyers and tenants, or insurance Managers. For routine access to the Premises Manager shall provide a 24 hour written notice, typically done via email.

Tenant shall permit Manager during the term of this Lease Agreement (but only between the hours of 9:00 a.m. to 6:00 p.m.) to show the premises to prospective tenants or purchasers, upon 4-hour notice, in writing or verbally, to Tenant; and further, Manager may enter upon the premises at any time during the term of the Lease Agreement with or without notice to Tenant, if entry is deemed by Manager necessary for the protection of the premises. Failure to allow showings may be considered a violation of this lease agreement and a service charge of \$50 may apply for each declined showing or missed vendor appointment, at the sole discretion of Manager.

2.24 MAINTENANCE

Tenant shall use customary diligence in maintaining the Property and common area.

Unless authorized by Manager in writing, Tenant shall not perform any repairs, painting, wallpapering, carpeting, electrical changes, or otherwise alter the Property or the common areas. No holes or stickers are allowed inside or outside the Property. Landlord may permit a reasonable number of small nail holes for picture hanging in sheet rock walls and grooves of wood-paneled walls but does not allow the hanging and installation of flat panel Televisions/Television mounting brackets or other like devices. No water furniture, antennas, additional phone or TV-cable outlets, alarm systems, or lock changes, additions, or re-keying is permitted unless consent to by the Landlord in writing. Tenant shall not alter or remove property, including alarm systems, smoke detectors, furniture, telephone and cable TV wiring, screens, locks, and security devices. Landlord shall supply light bulbs for fixtures furnished at lease inception; after that, Tenant shall replace them at Tenant's expense with bulbs of the same wattage.

Tenant shall be responsible for all clogged drains, related service calls, as well as the costs associated with such repairs within the property, however, Tenant will not be responsible for blockages within the condominium building main pipes, which are the responsibility of the HOA.

Tenant shall be responsible for replacing the HVAC filters on a quarterly basis and shall be responsible for any damage caused to the HVAC system as well as service calls due to dirty HVAC filters.

Tenant's improvements to the Property (whether or not Landlord consents) become Landlord's unless Landlord agrees otherwise in writing.

2.25 REQUESTS, REPAIRS, AND MALFUNCTIONS

ALL NOTICES AND REQUEST FOR REPAIRS, INSTALLATIONS, OR SERVICES, OR SECURITY-RELATED MATTERS MUST BE MADE IN WRITING TO THE LANDLORD'S DESIGNATED REPRESENTATIVE (except in emergencies involving immediate danger to person or property, such as fire, gas, smoke, overflowing sewage, uncontrollable running water, electrical shorts, or crime in progress).

2.26 DAMAGE TO UNIT

Except as may have been specifically disclosed acknowledged, and agreed to by Manager on such Move In / Move Out Checklist or inventory of damage form, Tenant shall be solely responsible for damage to the premises or fixtures, appliances or furnishings (if any) therein, caused by Tenant, Tenant's family, servants, Managers or guests or for damage caused by any escape or overflow of water, gas, electricity or other substances caused intentionally or by the negligence of Tenant. In the event of any such damage to the premises or fixtures, appliances or furnishings therein, Tenant shall immediately notify Manager and Landlord may at its sole option repair the same and Tenant shall be obligated to reimburse Landlord therefore within five (5) days after receipt of a statement from Landlord or Manager of the cost of said repair. In the event Landlord elects not to repair such damage, it may exercise any other right or remedy provided under this Lease Agreement, including but not limited to termination of this Lease Agreement.

Regardless of any security deposit, if Tenant is liable for any damages, Tenant shall pay Landlord or Manager for such damage upon demand. Landlord or Manager's right to possession of the Premises upon Tenant's default shall not be limited in any respect because Landlord holds any security deposit. If Manager applies any portion of the Security Deposit for any purpose while Tenant is in possession of the premises, Tenant shall promptly pay Manager upon demand the amount necessary to restore the deposit to the original amount. Tenant's legal liability to Landlord shall not be limited under any circumstances to the amount of the Security Deposit, but rather Tenant remains liable for and shall promptly pay Manager all sums due under this Lease in excess of the Security Deposit including but not limited to all amounts for damages or repairs.

2.27 SPECIAL PROVISIONS

The following special provisions control over conflicting provisions of this printed Lease Contract form:

Unit specific and build specific provisions

2.28 LEASE ATTACHMENTS

Move-In/Move-Out Walk Through Form, HOA Rules & Regulations, Xcel Energy Application, Key and Access Addendum.

2.29 LEAD-BASED PAINT

If the Property was constructed before 1978, (except if the term of the lease is less than 100 days with no possibility of renewal), Federal Lead-Based Paint Regulations will apply, and Landlord must provide to Tenant disclosures and information required by Federal regulations. Tenant must also receive a pamphlet called "Protect Your Family from Lead-Based Paint in Your Home." If the Property is subject to the Lead-Based Paint Regulations, see attached addendum, Disclosure of Information on Lead-Based Paint and/or Lead-Based Paint Hazards.

2.30 ATTORNEY AND COLLECTION FEES

If Tenant's account is placed for eviction or collection, Landlord may recover all costs of eviction or collection, whether or not a suit is filed. Late charges are liquidated damages for Landlord and Manager's time, inconvenience, and overhead in collecting late rent (but are not for attorneys' fees and litigations costs). All unpaid amounts bear 18% interest per year from due date, compounded monthly. Tenant shall pay all collection agency fees in addition to the amounts that are due under this Lease Contract. All parties hereby agree to waive the right to a jury trial. Furthermore, the prevailing party may recover reasonable attorney's fees.

2.31 APPLIANCES AND FURNISHINGS

If currently installed on the premises, the following appliances, fixtures, and personal property are also included in this lease and are provided in AS-IS condition: refrigerator, stove, dishwasher, microwave, clothes washer, clothes dryer, water filtration system, water softener, and any other currently installed appliances. In the event that an appliance fails during the term of this lease, landlord shall, at Landlord's sole discretion, repair appliance within a reasonable time frame or replace said appliance with a like-kind appliance of make and model of Landlord's choosing.

2.32 INTERPRETING THIS LEASE CONTRACT

Neither Landlord nor any of Landlord's representatives have made any oral promises, representations, or agreements. This Lease Contract and all its attachments is the entire agreement. Landlord's representatives (including management personnel, employees and Managers) have no authority to waive, amend, or terminate this Lease Contract or any part of it, and no authority to make promises, representations, or agreements that impose security duties or other obligations on Landlord or Landlord's representatives unless in writing. No action or omission of Landlord's representative will be considered a waiver of any subsequent violation, default, or time or place of performance. Landlord or Manager not enforcing or belatedly enforcing written-notice requirements, rental due dates, acceleration, liens, or other rights isn't a waiver under any circumstances. Exercising one remedy shall not constitute an election or waiver of other remedies. All remedies are cumulative. No employee, Manager, or Management Company is personally liable for any of Landlord's contractual, statutory, or other obligations merely by virtue of acting on Landlord's behalf. Neither an invalid clause nor the omission of initials invalidates this Lease Contract. All provisions regarding the Manager's non-liability and non-duty apply to Manager's employees, Managers, and management companies. This Lease Contract is subordinate to existing and future recorded mortgages. All Lease Contract obligations must be performed in the county where the property is located. Tenant shall not record this Lease Contract.

2.33 CAPTIONS

Captions or headings contained in this Lease shall not be construed to be a part of the Lease, but are included for the purposes of convenient reference only.

2.34 PARTIAL INVALIDITY

Any provision of this Lease which shall prove to invalid, void or illegal shall in no way affect, impair or invalidate any other provision or provisions hereof, and such other provisions shall remain in full force and effect.

2.35 LAW GOVERNING

This Lease shall be governed by the law of the State of Colorado.

2.36 COPIES AND ATTACHMENTS

This Lease Contract has been executed in multiple copies, one for Tenant and one or more for Manager. By signing the Lease Contract, Tenant acknowledges receipt of a copy of the Lease Contract and all its attachments. Tenant should retain a copy of the lease contract and all attachments.

2.37 ENTIRE AGREEMENT, MODIFICATION, SURVIVAL

This Lease Agreement shall be binding upon Landlord and Tenant and shall extend to be binding upon their heirs, executors, legal representatives and assigns. Landlord may (but shall not be obligated to) at any time, including following the death of Tenant, deliver copies of any and all keys to any person designated by Tenant as the Emergency Contact in the application or other writing provided by tenant to Landlord.

By initialing below, you acknowledge and agree to the terms in Section 2.

RV
GJS
Tenant Initials

RV
TC
Landlord Initials

3. Addenda

3.1 REQUIRED TENANT LIABILITY INSURANCE

This Addendum is attached to and becomes a part of the Residential Rental Agreement. For the duration of the Rental Agreement, Tenant is required to maintain and provide the following minimum required insurance coverage:

- \$100,000 Limit of Liability for Tenant's legal liability for damage to the Landlord's property for no less than the following causes of loss: fire, smoke, explosion, water damage, backup or overflow of sewer, drain or sump ("Required Insurance").

Landlord must be listed as an Additional Insured on the policy. Tenant is required to furnish Landlord with evidence of Required Insurance prior to occupancy of leased premises and at the time of each lease renewal period. If at any time Tenant does not have Required Insurance, Tenant is in breach of the Rental Agreement and Landlord shall have, in addition to any other rights under the Rental Agreement, the right but not the obligation to purchase Required Insurance coverage and seek reimbursement from the Tenant for all costs and expenses associated with such purchase.

Tenant may obtain Required Insurance from an insurance agent or insurance company of Tenant's choice. If Tenant furnishes evidence of such insurance and maintains the insurance for the duration of the Lease Agreement, then nothing more is required. If Tenant does not maintain Required Insurance, the insurance requirement of this Rental Agreement may be satisfied by Landlord, who may schedule the Tenant's unit for coverage under the Landlord's Required Resident Liability insurance policy ("LRRL"). The coverage provided under the LRRL will provide the Required Insurance coverage listed above. An amount equal to the total cost to the Landlord for the LRRL coverage shall be charged to Tenant by the Landlord. Some important points of this coverage, which Tenant should understand are:

1. LRRL is designed to fulfill the insurance requirement of the Rental Agreement. Landlord is the Insured under the LRRL. Tenant is not the insured under the LRRL policy.
2. LRRL coverage is not personal liability insurance or renters insurance. Landlord makes no representation that LRRL covers the Tenant's additional living expenses or liability arising out of bodily injury or property damage to any third party. If Tenant requires any of these coverages, then Tenant should contact an insurance agent or insurance company of Tenant's choice.
3. Coverage under the LRRL policy may be more expensive than the cost of Required Insurance obtainable by Tenant elsewhere. At any time, Tenant may contact an agent of their choice for insurance options to satisfy the Required Insurance under this Rental Agreement.
4. Licensed insurance agents may receive a commission on the LRRL policy.
5. The cost to the Tenant for the LRRL coverage shall be nine dollars and fifty cents (\$9.50) per month.

Scheduling under the LRRL policy is not mandatory and Tenant may purchase Required Insurance from an insurance agent or insurance company of Tenant's choice at any time and coverage under the LRRL policy will be terminated by the Landlord.

3.2 CRIME FREE

In consideration of the lease or renewal of the lease of the Property, Landlord and Tenant agree as follows:

1. Tenant, any member of the Tenant's household, guest(s) or other person(s) on the premises with the Tenant's consent, shall not engage in any act intended to facilitate criminal activity, including drug-related criminal activity, on or about the said premises.
2. Tenant and/or members of the Tenant's household will not permit the dwelling unit to be used for, or to facilitate criminal activity, including drug-related criminal activity, regardless of whether the individual engaging in such activity is a member of the household or a guest.
3. Tenant, any member of the Tenant's household, guest(s) or other person(s) on the premises with the Tenant's consent, shall not engage in the unlawful manufacturing, selling, using, storing, keeping, or giving of a controlled substance whether on or about the dwelling unit or premises.
4. Tenant, any member of the Tenant's household, guest(s) or other person(s) on the premises with the Tenant's consent, shall not engage in any illegal activity, including but not limited to prostitution, criminal street gang activity, threatening or intimidating assault, or the unlawful discharge of firearms, on or about the dwelling unit premises, or any breach of the lease that otherwise jeopardizes the health, safety and welfare of the Landlord, its agents, or other Tenant, or involving imminent serious property damage.
5. Tenant, any member of the Tenant's household, guest(s) or other person(s) on the premises with the Tenant's consent, shall not engage in any illegal activity, including but not limited to prostitution, criminal street gang activity, threatening or intimidating assault, or the unlawful discharge of firearms, on or about the dwelling unit premises, or any breach of the lease that otherwise jeopardizes the health, safety and welfare of the Landlord, its agents, or other Tenant, or involving imminent serious property damage.
6. VIOLATION OF THIS ADDENDUM OCCURRING ON OR NEAR THE PROPERTY SHALL BE A MATERIAL VIOLATION OF THE LEASE AND CAUSE FOR TERMINATION OF TENANCY.
7. No provision of the lease shall diminish the Tenant's obligations under this Addendum.

3.3 EXPERIAN RENTBUREAU

HomeVault participates in credit bureau reporting through Experian RentBureau. Credit plays an important role in your life — affecting the

purchases you make and much more. A credit history is vital in today's economy and enables you to obtain valuable credit services such as credit cards, mortgages and auto loans. Lenders use credit reports and credit scores to gauge the likelihood that you will pay back a loan. We understand the importance of building credit history and believe that responsible renters should get credit for managing their rental payments.

Experian RentBureau receives updated rental payment data every 24 hours from property management companies and electronic rent payment services nationwide. This data is accessed by resident screening companies for use during the application process for prospective residents. Continuous on-time rental payment data also may be incorporated within Experian credit reports, which are used by various types of credit-granting institutions, including banks, auto finance companies and telecommunications providers.

For more information, please visit: <http://www.experian.com/rentbureau/renter-credit.html>.

3.4 SERVICE AND THERAPY ANIMALS IN PRIVATELY-OWNED HOUSING

Applicable Anti-Discrimination Laws. The Fair Housing Amendments Act of 1988 ("FHAct") prohibits discrimination in the sale or rental of a dwelling to a buyer or renter because of a handicap and covers all types of housing, including privately owned housing and federally-assisted housing. In addition, Section 504 of the Rehabilitation Act of 1973 ("Section 504") applies to housing providers that receive federal financial assistance from the U.S. Department of Housing and Urban Development (HUD). Under both the FHAct and Section 504, a person is considered handicap or disabled if s/he has "a physical or mental impairment that substantially limits one or more major life activities; has a record of such impairment; or is regarded as having such an impairment". The term "discrimination" is defined to include "a refusal to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling."

The American with Disabilities Act ("ADA") also prohibits discrimination against persons with disabilities, but applies specifically to public entities and places of public accommodations (businesses that are generally open to the public and that fall into one of 12 categories listed in the ADA).

Service and Therapy Animals. The law distinguishes between service animals and emotional support or therapy animals. The term "service animal" derives from ADA. The ADA limits the definition of "service animal" to include only dogs and miniature horses that are individually trained to do work or perform tasks for the benefit of an individual with a disability. The ADA excludes other assistance animals, such as emotional support animals. New Mexico also has a statute that establishes certain protections for persons that utilize the support of service animals, the Service Animal Act ("Act"). The definition of "qualified service animal" and "qualified service dog" under the Act is similar to that in the ADA.

However, the FHAct and Section 504, which apply specifically to housing providers, as discussed above, require housing providers to make reasonable accommodations for assistance animals. Under the FHAct and Section 504, the term "assistance animal" is defined to include both service and therapy animals (the latter may also be referred to as assistive, (emotional) support or comfort animals). For purposes of reasonable accommodations, neither the FHAct, nor Section 504 requires an assistance animal to have specialized training or be certified. Further, while dogs are the most common assistance animals, any type of animal can be an assistance animal.

"No Pet" Policies. Because assistance animals are not considered pets, a "No Pets" policy does not apply to an assistance animal. Further, the housing provider may not charge a pet deposit, pet fee or pet rent or increase the standard security deposit because the assistance animal is residing in or on the property. However, assistance animals are not exempt from local animal control or public health requirements. Consequently, a housing provider may request proof that the tenant has complied with all applicable licensing and/or vaccination ordinances.

Request for Reasonable Accommodation. In the event the housing provider has a "no pet policy", the housing provider is authorized to verify that the request to set aside such a policy in order to accommodate the applicant or tenant is a reasonable one. In order to qualify as a reasonable accommodation, the following criteria must be satisfied:

1. the tenant, a member of the tenant's family or other person associated with the tenant who is residing at the property has a disability that substantially limits one or more major life activities; and
2. the animal is needed to assist with that disability; and
3. the individual who requests the reasonable accommodation demonstrates that there is a relationship between the disability and the assistance that the animal provides; there is "an identifiable relationship, or nexus, between the requested accommodation and the person's disability."

A housing provider may only request documentation of the disability if the disability is not readily apparent or is not already known to the housing provider. For example, individuals who are seeking a reasonable accommodation for an emotional support animal may be required to provide documentation from a health care provider (such as a physician, psychiatrist, social worker, or other mental health professional) that the animal provides support that alleviates at least one of the identified symptoms or effects of the existing disability. This does not mean that any animal providing some benefit to a tenant must always be accepted. The mental health professional must connect the tenant's possession of the animal with an alleviation of at least one symptom of the disability. While this requires more than a mere statement that a dog or cat makes a tenant feel good, the housing provider may not ask the applicant or tenant to provide access to medical records or medical providers or provide detailed or extensive information or documentation of a person's physical or mental impairments.

Denying a Request for Reasonable Accommodation. Under certain circumstances, a housing provider may deny a tenant's request to have an assistance animal, even if all of the foregoing criteria have been satisfied: 1) if the assistance animal has a history of dangerous behavior; 2) if the presence of the assistance animal would result in substantial physical damage to the property of others unless the threat can be eliminated or significantly reduced by a reasonable accommodation; (3) if allowing the assistance animal poses an undue financial and administrative burden on the housing provider; or (4) if allowing the assistance animal fundamentally alters the nature of the provider's operations.

Breed size and weight limits may not be applied to assistance animals. A determination that an assistance animal poses a direct threat of harm to others or would cause substantial physical damage to the property of others must be based on the individualized assessment that relies on objective evidence about the specific animal's actual conduct, not on mere speculation or fear about the types of harm or damage an animal may cause or on prior experiences with other animals.

Damage Caused by Assistance Animal. While the housing provider is prohibited from collecting an additional damage deposit based on the assistance animal living in or on the property, the tenant remains responsible for damage to the property caused by the assistance animal. If the housing provider learns of the damage while the tenant is still residing in the property, the housing provider may treat such occurrence in the same manner as s/he would treat the occurrence of damage to the property caused by the tenant. For example, damage to the property may result in the housing provider serving the tenant with a three or seven-day notice of non-compliance with the rental agreement. If the housing provider learns of the damage after the tenant has vacated the property, the housing provider may apply the damage deposit to the cost of remediating such damage (as long as the housing provider complies with all accounting of the damage deposit as required by law) and if such damage deposit is insufficient, may pursue all legal remedies available by law and equity against the tenant for recovery of any remaining amount due to repair the damage.

For More Information. For more information on the the ADA, the FHAct and Section504, visit, <http://portal.hud.gov/hudportal/HUD>; type in "assistance animals" in the search box. For advice regarding a specific situation involving an assistance animal, housing providers should consult with their own independent legal counsel.

3.5 BED BUGS

TENANT ACKNOWLEDGES THAT:

1. They have received and read the pamphlet "**Bed Bug Prevention, Detection and Control**," available online at <https://www.epa.gov/sites/production/files/2014-02/documents/bed-bug-prevention-detection-control.pdf>, which outlines how to detect bed bugs, how they spread, how to prevent bed bugs and pest management.
2. The Landlord has inspected the Property and is not aware of any bed bug infestation.
3. He/she may have his/her own inspection of the Property conducted by a pest management professional before moving into the Property and that such inspection would be at Tenant's sole cost and expense.
4. All furnishings and personal properties that will be moved into the Property will be free of bed bugs.

TENANT HEREBY AGREES TO THE FOLLOWING:

1. To check for hitch-hiking bed bugs. If Tenant(s) stays in a hotel or another home, Tenant(s) agrees to inspect clothing, luggage, shoes and personal belongings for signs of bed bugs before re-entering the Property. After using public transportation or visiting theater, Tenant(s) agrees to check backpacks, shoes and clothing before re-entering Property. After guests visit, Tenant(s) agree to inspect beds, bedding and upholstered furniture for signs of bed bug infestation;
2. To report any problems immediately to Landlord. Even a few bed bugs can rapidly multiply to create a major infestation that may spread to other properties;
3. To cooperate with Landlord and/or pest management professionals in their pest control efforts. If the Property or, in the event of multi-family units, a neighbor's property is infested a pest management professional may be called in to eradicate the problem. The Property must be properly prepared for treatment. Tenant must comply with recommendations and requests from the pest management professional prior to treatment, including but not limited to:

- Placing all bedding, drapes, curtains and small rugs in bags for transport to laundry or dry cleaners;
- Disposing of heavily infested mattresses by sealing them in plastic and disposing of them properly;
- Emptying dressers, night stands and closets;
- Removing all items from floors. All clothing, shoes, boxes, toys, etc. should be bagged and sealed. Washable and non-washable items should be bagged separately and used bags must be disposed of properly.
- Vacuuming all floors (including closet floors), furniture (including inside drawers and nightstands) and mattresses and box springs; carefully remove vacuum bags, seal them tightly in plastic and discard of them properly;
- Washing all machine-washable bedding, drapes and clothing, etc. on the hottest water temperature and drying on the highest heat setting. Take other items to the dry cleaners; inform the dry cleaners that the items are infested;
- Discarding any items that cannot be decontaminated;
- Clearing off furniture and moving it to the center of the room, so that technicians can easily treat furniture surfaces, walls and carpet edges, where bed bugs congregate; leave easy access to closets.

EXPENSES. Tenant agrees that he/she may be responsible for expenses, including but not limited to, attorney fees and pest management fees that Landlord may incur as a result of infestation of bed bugs in the apartment.

Landlord is not required to provide Tenant with alternative lodging or to pay to replace a Tenant's personal property.

HOLD HARMLESS. Tenant agrees to hold Landlord harmless from any actions, claims, losses, damages and expenses that Tenant may incur as a result of a bed bug infestation, including, but not limited to loss of personal property. Tenant is advised to obtain appropriate personal property insurance to cover such losses.

By initialing below, you acknowledge and agree to the terms in Section 3.

 **Tenant Initials**

The tenant's initials "GJS" are written in green ink inside a green rectangular box. The box has "RV" in the top right corner.

 **Landlord Initials**

The landlord's initials "TC" are written in green ink inside a green rectangular box. The box has "RV" in the top right corner.

4. Other Important Information

4.1 SECURITY DEPOSIT AND MOVE-IN RENT

Move-In Rent: \$ \$0.00

Security Deposit: \$ \$0.00

4.2 MONTHLY RECURRING RENT

Monthly Rent: \$ 1,725.00

4.3 MAIL SERVICE

Often times mail service is provided to community boxes. If your home fits this type of mail service, in most cases, you will need to visit the U.S. Postal Service to schedule a key change of your mailbox. They will provide you with a new key as well as the location of your mailbox. They may charge you with this service.

By initialing below, you acknowledge and agree to the terms in Section 4.

^{RV}
GJS
Tenant Initials

^{RV}
TC
Landlord Initials

5. Sign and Accept

5.1 ACCEPTANCE OF LEASE

This is a legally binding document. By typing your name, you are consenting to use electronic means to (i) sign this contract (ii) accept lease agreement and addenda. You will receive an electronic copy of this Agreement for your records.

X RV Signed by:
Gustav J. Solis

 Lessee Gustav J. Solis 04/06/2022

 Date Signed

X _____

 Lessee Date Signed

X _____

 Lessee Date Signed

X _____

 Lessee Date Signed

X RV Signed by:
Tony Cline

 Lessor (as Agent for Owner)
 HomeVault 04/12/2022

 Date Signed



ATTENTION RESIDENT

THIS IS A LEGALLY BINDING DOCUMENT. PLEASE READ IT THOROUGHLY BEFORE YOU SIGN. THERE ARE NO AGREEMENTS BETWEEN THE PARTIES UNLESS CONTAINED IN WRITING SIGNED BY BOTH PARTIES, ATTACHED AND MADE A PART OF THIS LEASE. YOU ARE ENCOURAGED TO READ AND UNDERSTAND THE TERMS OF THIS LEASE BEFORE YOU SIGN THIS AGREEMENT. YOU HAVE THE RIGHT TO HAVE AN ATTORNEY, INSPECTOR, AND/OR OTHER PROFESSIONAL TO ADDRESS ANY QUESTIONS OR CONCERNS WITH ANY PROVISION CONTAINED IN THIS LEASE.

This agreement is made between:

RESIDENT: Gustav J. Solis ("Resident")

and

REAL ESTATE MANAGEMENT FIRM: HomeVault Property Management ("HomeVault" or "Agent").

PREMISES: 2261 Blake St, Apt 3B, Denver, CO 80205



Security Deposit Waiver Agreement

- ☐ I decline to participate in the Security Deposit Waiver and will pay the full security deposit.
- ☒ I elect to participate in the Security Deposit Waiver and will pay the monthly fee and have a \$0 security deposit owed on the lease.

Tenants participating in the Security Deposit Waiver understand the following terms and conditions:

As a way to provide You with lower up-front move-in costs than the total cost associated with a traditional Security Deposit, We are offering the option for you to pay a monthly non-refundable Security Deposit Waiver Administrative Fee in lieu of a traditional cash Security Deposit. The Security Deposit Waiver option has been explained to You and You have voluntarily elected to participate in the program. **The non-refundable Security Deposit Waiver Administrative Fees are not a deposit and are not intended to secure performance of your obligations under the Lease**, but rather are to lower the total move-in cost for residents who choose to participate in the program. In lieu of paying a traditional Security Deposit and in consideration for Your participation in the program, You agree to authorize a Bank Authorization in the amount of \$ 1,725.00. This bank authorization allows Us to charge You as indicated on the final account statement up to the amount of the aforementioned Bank Authorization. Said deduction will be made from the credit card, debit card and/or bank account You authorized and linked to Your account when you enrolled in the Program. Notwithstanding Your payment of the Service Fee and agreement to the Bank Authorization, the Bank Authorization is not a limitation of damages and You shall remain responsible for the full amount of any and all damage to the Premises exceeding normal wear and tear, and any unpaid rent, utilities or any other lawful amount owed by You under the Lease at the time of move out which exceeds the amount of the Bank Authorization. You will receive a final account statement reflecting all charges owed at the time of move out within sixty days of the date on which possession of the Premises is returned and the Lease has terminated. **You understand and agree that the Bank Authorization is not a Security Deposit and that the Bank Authorization is not held on hand by Us** to offset against potential damages, charges or other outstanding balances. Any amount left owing at the end of the Lease terms is Your full responsibility. All Security Deposit Waiver Administrative Fees are final and no refunds shall be issued. This agreement remains in effect with the monthly Security Deposit Waiver Administrative Fee due on the 1st of each month so long as You occupy the Premises with HomeVault as the Management Firm.

Your participation in the Security Deposit Waiver program shall not otherwise modify, waive or alter any other terms or conditions of the Lease Agreement on the Premises, which shall remain in full force and effect unless otherwise agreed upon in writing by the parties.

You understand that the Security Deposit Waiver Program is not Resident's insurance, that You are not purchasing any type of insurance from the Premises, that You are not the beneficiary of any insurance program and that neither the Premises nor any third-party provides any insurance which covers You, the Resident.



Resident Benefits Package Agreement

IN CONSIDERATION of the promises contained in this Agreement, Resident hereby agrees to pay HomeVault a Monthly Resident Benefit Package Fee. The value of the Monthly Resident Benefits Package Fee is \$32.95 for the simple lite Resident Benefits Package without keyless system and \$47.95 for the Resident Benefits Package that includes a keyless smart lock.

Monthly Resident Benefits Package Fee:

- ☒ \$32.95 without keyless smart home
☐ \$47.95 with keyless smart home

Your Resident Benefits Package includes the following features:

1. **If applicable, Keyless Smart Home.** Your rental home has been upgraded to a Keyless Smart Home connected via monthly cell tower subscription (no need to connect to wifi!). You will have an app with complete control to issue temporary codes to houseguests and say goodbye to your house keys!
2. **Utility & Maintenance Reduction Program.** Air filters delivered directly to your home! quality air filters will be delivered timely and straight to your home. No more trying to remember to pick one up from the store. We will send you the appropriate size and if your home requires more than one filter, don't worry, we've got that one covered, too, at no additional cost. The biggest benefit, when filters are changed regularly, utility savings can be as big as 15%! That's huge! All you have to do is install the filters when you receive them.
 - High-quality filters
 - Conveniently delivered directly to you
 - Filters are delivered on schedule as a timely physical reminder to change them
 - Energy savings up to 15%
 - Please note, some homes have more than one filter while some have no filters at all.
 - Because of this, HomeVault provides filters as needed with no change in prices for the Resident Benefits Package. Let us know if you have a medical need for special allergen filters.
3. **Utilities Concierge Setup.** We know that moving can be a stressful and difficult time, and sometimes getting your utilities set up to be prepared for your move-in date can be missed or forgotten about. That is why we have a utility concierge service reach out to you and assist in having all of your utilities connected prior to your moving into your new home.
4. **Rewards program for on-time payments.** You will receive several welcome gift cards when you join the program and additional rewards with each rent payment and at renewal time.
5. **Periodic Property Visits.** Throughout the year we will schedule periodic visits for us to come to check on the property and make sure you are doing okay and see if there is anything in particular that you need that you may not have already asked.
6. **Easy Online Maintenance Request.** You have 24/7 access to your Tenant Portal to submit maintenance requests, submit relevant photos, as well as check the status of the request.
7. **24/7 Maintenance Hotline with Live Phone Support.** You can reach a live person after hours for emergency maintenance concerns by simply calling our main phone line.



8. **Free Credit Reporting for All Rental Payments to Credit Bureau.** Paying your rent on-time helps you build your credit! You receive the benefit of positive credit reporting for all on-time rental payments to at least one credit bureau. We help you build your credit!

9. **Free Online Payment via E-Check.** Through your online Tenant Portal, all e-check payments are free of charge. The third-party processing company charges HomeVault Property Management fees to offer online payments, but through this agreement, there will be no additional cost to the resident. The tenant portal even allows for automatic payments that you have total control over, making remembering and paying rent that much easier!

* Our online portal also allows for credit and debit card payments. Some of the payment options are free (paying with echeck) while others incur a convenience fee (for the credit card payments).

10. **Document Storage.** Ever needed to give your lease to the utility company to prove your residency? We're sure you probably have! We make it easy to find your lease and other documents like Tenant Liability Insurance Policy by storing them in your secure, online Tenant Portal.

11. **One-time Late Fee Forgiveness.** In the unfortunate event of a late rent payment, we will credit your late fee once within a rolling 12 month period if you are in a term lease, to help alleviate the mishap.

12. **Tenant Liability Insurance Administration.** When you purchase Tenant Liability Insurance through our recommended provider, we will help administer the program and help through the claims process if needed (\$3.00 administration value).



Pet Agreement

Managing a property that admits pets presents us with a set of unique challenges. We need to ensure that the pet is secure before scheduling repairs or other routine property visits. We also need to enforce compliance with our pet policy to protect the property and to manage the pet updates at lease renewal. That is why HomeVault charges administrative fees to cover costs associated with our extensive screening and onboarding of each pet.

IN CONSIDERATION of the promises contained in this Agreement, Resident hereby agrees to pay HomeVault the following fees to be permitted to keep a pet of the type described above:

1. Pet Onboarding Administrative Fee: Resident shall pay a non-refundable, initial animal administrative fee. The amount of this fee is based on the pet's screening score and it ranges from \$300 to \$450. HomeVault offers a 50% discount on additional pets.

2. Monthly Pet Administrative Fee: Resident shall pay a monthly pet administrative fee ("Petl Fee"). Resident acknowledges that the amount of the Pet Fee is reasonable and agrees that HomeVault shall **not** be required to refund the monthly Pet Fee in whole or in part. Resident agrees to reimburse for any and all damages caused by any pet kept by Resident on the Premises, whether the damage is to the Premises or to any common areas used in conjunction with them. Resident further understands and agrees that the monthly fee will be \$30, \$35, \$40, or \$45 per month, per pet, depending on the pet's screening score as provided by a third-party tool.

The Pet Fee is due each month, on or before the 1st of the month. Any payments submitted by Resident shall first be applied to the Pet Fee and then any rents due. Resident agrees to pay this monthly fee while throughout the term of the lease and/or any subsequent renewal periods.



Cleaning and Move-Out Agreement

Moving into a new residence is a time-consuming and stressful process that often requires more time than Resident has. Additionally, cleaning standards can vary significantly from one individual to another. In an effort to lessen the Resident's workload at move-out and ensure that the Premises meet HomeVault's standards for a new resident, Resident agrees to pay a non-refundable, administrative Move-Out Fee in the amount of up to 50% of the monthly rent, in consideration of HomeVault not requiring Resident to leave the Premises in broom clean condition upon move out.

Payment of this fee covers carpet cleaning, vacuuming, mopping, cleaning appliances, replacing burnt out light bulbs, smoke alarm batteries, or other minor cleaning items that would otherwise be required to leave the Premises in a broom clean condition. This Move-out Fee **is NOT refundable and is NOT part of the Resident's Security Deposit on the Premises.**

In the event in which additional cleaning beyond normal wear and tear is required after move out, Resident shall remain responsible for the actual costs associated with such cleaning. Furthermore, in the event any carpet or flooring is damaged due to pet urine, waste, or any other substance that cannot be removed by cleaning the carpet or flooring, Resident shall remain responsible for any and all costs associated with the damage to said carpet or flooring, including, but not limited to, the pro-rated replacement costs of such carpet or flooring.

In the event that HomeVault is no longer the property manager of this unit on Resident's move out date, Resident agrees that HomeVault will not be responsible to perform any of the cleaning activities as described above, that the cleaning activities will be transferred to the Landlord, and that the Move Out Administrative Fee remains nonrefundable.



Lease Administrative Agreement

LEASE ADMINISTRATIVE FEE: A lease administrative fee ranging between \$150-700 may be applicable depending on your final application score. It has been shown through both statistical and historical analysis that an applicant's overall application score directly affects the management of the tenant and enforcement of the lease. Applicants with a lower overall application score present an increased workload to enforce the lease. To compensate these administrative costs of lease enforcement and allow applicants with a less than a perfect application score to still gain approval for their chosen property we have implemented a scoring model that allows applicants to pay a lease administrative fee to offset the increased administrative costs in approving them with lower than a good application score.

These additional administrative fees allow us to rent to applicants who may not otherwise be eligible to rent our homes. Your fee is determined by your application score and your scorecard will be furnished upon request.

NOTE: Applicants who do not have a credit score or which is determined N/A may be assigned a credit score of 500 for the purposes of determining their application score.

The Monthly Lease Administrative Fee is due each month on or before the 1st of the month. Any payments submitted by Resident shall first be applied to the Monthly Lease Administrative Fee and then to any rents due. Resident agrees to pay this monthly fee throughout the term of the lease and/or any subsequent renewal periods.

This Agreement contains the entire agreement of the parties and there are no representations, inducements or other provisions other than those expressed in writing. All changes, additions, or deletions hereto must be in writing and signed by all parties, with the sole exception of any changes to the Rules and Regulations.



Table of Charges

Move-in Charges:

- Pet Onboarding Administrative Fee: \$ NA
- Cleaning and Move-out Administrative Fee: \$ 365.00
- Lease Administrative Fee: \$ NA

Monthly Resident Agreement Charges: \$ 1,842.70

- Security Deposit Waiver Fee: \$ 50.25
- Resident Benefits Package: \$ 32.95
- Pet Administrative Fee: \$ NA
- Lease Administrative Fee: \$ NA

Tenant Liability Insurance \$9.50

This Agreement contains the entire agreement of the parties and there are no representations, inducements, or other provisions other than those expressed in writing. All changes, additions, or deletions hereto must be in writing and signed by all parties, with the sole exception of any changes to the Rules and Regulations.



Sign and Accept

This is a legally binding document. By typing your name, you are consenting to use electronic means to (i) sign this contract (ii) accept this agreement. You will receive an electronic copy of this Agreement for your records.

X RV Signed by:
Gustav J. Solis 04/06/2022
Lessee Gustav J. Solis Date Signed

X _____
Lessee Date Signed

X _____
Lessee Date Signed

X _____
Lessee Date Signed

X RV Signed by:
Tony Cline 04/12/2022
Lessor HomeVault Date Signed
as Agent for Owner

ADDENDUM 2021

This is an Addendum to the Lease (the "Lease") dated 5/30/2022 (the "Lease Date"), by and between Sean Burden (Landlord) and (Residents) Gustav J. Solis, (collectively hereinafter "Resident"), for the premises known as 2261 Blake St, Apt 3B, Denver, CO 80205 County of _____, State of Colorado ("Premises").

In case of any conflict between the provisions of the Lease and this Lease Addendum, the provisions of this Lease Addendum shall govern.

1. Rent is payable in advance. Rent is due (Check One):

X on or before the 1st day of the month.

Rent is late if not paid by 11:59 p.m. on the day it is due. If you fail to pay the rent within seven (7) calendar days of it being late, you agree to pay a late fee of five percent of the monthly rent whichever is greater. (If no box is checked rent is due on or before the 1st day of the month.)

2. Regardless of the language of the Lease, any amounts due pursuant to the Lease other than base monthly rent are no longer considered rent or additional rent. All such amounts shall be considered fees or additional consideration paid for Landlord's promises and covenants set forth in the Lease. Unless specifically stated in the Lease, any charges, fees, or amounts (collectively "amounts") other than rent due under this Lease are due and payable on the same day as rent. Landlord may change when amounts other than rent are due by providing Resident written notice that such amounts are payable on a different date.

3. **ATTORNEYS' FEES:** Tenant(s) agrees to pay Landlord all costs incurred by Landlord in connection with collecting any rent, amounts, or damages owing by Tenant under this Agreement or to enforce any provision of this Agreement, including but not limited to any collection costs and reasonable attorneys' fees from the date any such matter is turned over to an attorney and regardless of whether suit is commenced. **Landlord and Tenant(s) agree that any action or proceeding arising out of or in any way connected with this Agreement, regardless of whether such claim is based on contract, tort, or other legal theory, shall be heard by a court sitting without a jury and thus Tenant(s) hereby waives all rights to a trial by jury.** In any disputed court action where the court resolves the dispute and determines the prevailing party, the court shall also award to the prevailing party its attorneys' fees and costs and the non-prevailing party shall be liable to the prevailing party for payment of any court awarded attorneys' fees and costs. Tenant(s) agrees that suit shall have the broadest possible meaning and includes by way of example but not by way of limitation any lawsuit, governmental agency action including but not limited to any fair housing claim, or any other proceeding, between Landlord and Tenant(s) to enforce this Agreement, arising from this Agreement, or in any way connected with this Agreement or Tenant(s)'s tenancy at the premises, including but not limited to litigation concerning Tenant(s)'s security deposit. Resident agrees to pay eighteen percent (18%) interest compounded annually on all unpaid rent, amounts, or damages owed by Resident, except for late fees, from that date of Landlord's final accounting until such time Resident pays all outstanding amounts.

4. **STATUTORY RIGHT TO CURE.** Pursuant to Colorado law, Resident has the right to pay all amounts due prior to a court entering a judgment for possession if Resident is being evicted for non-payment of rent. If Resident exercises Resident's statutory right to pay, Landlord only has to accept Resident's payment if Resident fully pays all amounts due according to eviction notice, as well as any rent that remains due under this Agreement. If Resident exercises Resident's right to pay, Resident agrees to

pay the Landlord directly in certified funds. If Resident exercises Resident's statutory right to pay in response to an eviction notice after the notice has expired and after Landlord's attorney has filed an eviction case with a court to enforce Landlord's legal rights but before the court has entered a judgment for possession, Resident agrees to pay Landlord's current attorney's fees and court costs as set forth in the eviction notice in addition to any other amounts due pursuant to the Lease and all other amounts set forth in the notice. If Landlord files an eviction case and the court determines the possession issue because Resident disputes the eviction case, attorneys' fees and costs will be awarded to the prevailing party as determined by the court consistent with the parties' intent to have attorneys' fees and court costs awarded to the prevailing party in disputed court actions as set forth in this Agreement.

This is not a Real Estate Commission Approved Form. It was prepared by Landlord's attorney, Tschetter Sulzer, PC.

RV Signed by: <u>Tony Cline</u> Landlord/Agent for Landlord HomeVault	<u>04/12/2022</u> Date	RV Signed by: <u>Gustav J. Solis</u> Resident HomeVault	<u>04/06/2022</u> Date
		Resident HomeVault	Date
		_____ Resident HomeVault	_____ Date